

the *Serafin* court looked to the presence or absence of evidence of the employer's intent to be bound by the agreement. It then concluded the employer's intent to be bound by the agreement could be inferred because the agreement was drafted by the employer, the agreement was printed on the employer's letterhead, and the employer filed a motion to stay the litigation and compel arbitration. (*Id.* at pp. 176-177.) The Court cannot, as Defendant urges us to do, presume Defendant assented to the agreement when the terms of the agreement specifically call for signatures from both parties and Defendant failed to sign it.

Conclusion

For the reasons analyzed above, the Motion to Compel Arbitration is **DENIED**.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C24-02351
CASE NAME: SANDRA HERNANDEZ VS. NFP CORPORATE SERVICES (CA), INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFFS RESPONSES TO REQUESTS FOR**
ADMISSION, SET ONE
FILED BY: NFP CORPORATE SERVICES (CA), INC.
TENTATIVE RULING:

Defendant NFP Corporate Services (CA), Inc. (“Defendant”) filed a motion to compel responses to requests for admission on December 30, 2025 (the “Motion to Compel”). By the Motion to Compel, Defendant seeks an order compelling plaintiff Sandra Hernandez (“Plaintiff”) to make further verified, objection free responses to Requests for Admission, Set One. The Motion to Compel was set for hearing on July 27, 2026.

Background

Defendant served requests for admission (“RFA”) on August 25, 2025 with responses due on September 24, 2025. See Declaration of Annalisa Zulueta filed December 30, 2025 (“Zulueta Decl.”), ¶¶5-6. Plaintiff responded on September 29, 2025. Zulueta Decl., ¶7 and **Exhibit 8** thereto (the “RFA Response”). The RFA Response primarily contained repeated, substantially similar objections, except for two express denials. *Id.* Defendant’s declaration contends the RFA Response was not verified, which is conceded by Plaintiff’s opposition. See Zulueta Decl., ¶17; see also Plaintiff’s Opposition to Motion to Compel filed July 17, 2026 (the “Opposition”), p. 4.

Defendant describes meet and confer efforts between November 2025 and December 2025 which were unsuccessful. Zulueta Decl., ¶¶12-15 and **Exhibits 9, 10, and 11** thereto.

Defendant subsequently filed the Motion to Compel on December 30, 2025. The Proof of Service filed December 30, 2025 reflects service of the Motion to Compel.

Analysis

The primary purpose of RFAs “is to set issues at rest by compelling admission of things that cannot reasonably be controverted.” Weil & Brown *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 8:1256. RFAs may be used to establish the truth of specified facts, opinions relating to fact, or legal conclusions. Code Civ. Proc. § 2033.010. The response to an RFA must be signed under oath (i.e. verified), unless it contains only objections. *Id.* at § 2033.240(a).

The party propounding the RFA may move for an order compelling further responses if it deems that the responses received are incomplete, evasive, or contain meritless objections. Code Civ. Proc., § 2033.290(a).

Timeliness

Notice of such a motion to compel further responses must be given within 45 days of the service of verified responses. *Id.* at § 2033.290(c) (“Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing, the requesting party waives any right to compel further response to the requests for admission.”).

The court in *Golf & Tennis Pro Shop, Inc v. Superior Court* held that unverified *hybrid* responses, those containing both objections and substantive responses, do not start the 45-day period. *Golf & Tennis Pro Shop, Inc v. Superior Court* (2022) 84 Cal.App.5th 127, 136. The court reasoned that hybrid responses must be verified, and therefore the “45-day clock” does not start until they are indeed verified. *Id.*

Here, Plaintiff’s RFA Response primarily contained objections. However, that response did also include two substantive denials (as to RFA Nos. 24 and 25). See Zulueta Decl., **Exhibit 8**, p. 3. This makes it a hybrid response falling squarely within the rule of *Golf & Tennis Pro Shop*. As Plaintiff’s RFA Response has not been verified, the 45-day clock did not start.

For the above reasons, the Court finds that Defendant’s Motion to Compel is timely.

Objections to RFAs

As to the RFAs to which objections were made, Plaintiff’s objections consist of substantially similar objections: “Objection. Vague and ambiguous. Unintelligible. Attorney work product.” See Separate Statement.

Many of the requests included in the RFA contain the language “Admit that YOU do not have any facts to prove that ... ” See Separate Statement ISO Motion to Compel filed December 30, 2025 (“Separate Statement”).

Arguably, whether a party “has” facts to “prove” something is inherently subjective and unknowable. Nonetheless, requests seeking admissions regarding legal conclusions are permissible under Code of Civil Procedure section 2033.010. The Court reads this phrasing as asking if Plaintiff is “aware of” facts which they believe prove a legal contention.

The objections to the RFAs are addressed further below, in the context of specific RFAs.

RFA No. 1. When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255. Notwithstanding the argument that the phraseology is vague and ambiguous, the Court does not find that the request for an admission as to whether the responding party has “...any facts to prove that Defendants falsely represented and claimed to be licensed by the State of California to provide financial advisory services and insurance services” is impermissibly vague, ambiguous and/or unintelligible. The responding party can certainly respond based on whether the party is aware of any facts which they believe support the referenced fact/legal contention. The call of the request is not so ambiguous so as to render the request unintelligible and/or preclude an intelligent reply. See CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) (“CJER Civ. Pro.—Discovery”), § 5.5. The stated “Vague and ambiguous,” and “Unintelligible” objections are **OVERRULED**. As to the boilerplate “Attorney work product” objection, the objection is **OVERRULED**, without prejudice to the assertion of any such contended privilege as to particular advice, evaluation or other properly protectable attorney work product as relates to any further discovery into such matters. The motion is **GRANTED** as to this RFA and a further response shall be made as ordered below.

RFA Nos. 2-22. For the same reasons discussed above in connection with RFA No. 1, the stated objections are **OVERRULED** and the motion is **GRANTED** as to these RFAs. Further responses shall be made as ordered below.

RFA No. 23. The stated “Vague and ambiguous,” and “Unintelligible” objections are **SUSTAINED**. The RFA states “Admit that required Defendants to investigate the INVESTMENT, the parties involved in the INVESTMENT, and the nature of the INVESTMENT.” The lead in phrase “[a]dmit that required...” is so grammatically flawed as to render the request unintelligible and/or precludes an intelligent reply. The motion is **DENIED** as to this RFA.

RFA No. 26 and 27. The Court does not find that the call of either of these requests is so ambiguous so as to render the request unintelligible and/or preclude an intelligent reply. The stated “Vague and ambiguous,” and “Unintelligible” objections are **OVERRULED**. As to the boilerplate “Attorney work product” objection, the objection is **OVERRULED**, without prejudice to the assertion of any such contended privilege as to particular advice, evaluation or other properly protectable attorney work product as relates to any further discovery into such matters. The motion is **GRANTED** as to these RFAs and further responses shall be made as ordered below.

Sanctions

As relates to sanctions however, in light of the foregoing, the Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.480(j) (“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted

with substantial justification or that other circumstances make the imposition of the sanction unjust.”).

Disposition

The Court finds and orders as follows:

1. The Motion to Compel is **GRANTED IN PART** and **DENIED IN PART**, as set forth further above.
2. To the extent granted above, Plaintiff shall serve **verified** further amended responses to the subject RFAs **within thirty (30) calendar days** of notice of entry of this order.
3. Any and all sanctions requests are DENIED. However, the Court reserves jurisdiction regarding the consideration and imposition of any and all further sanctions as the Court may deem just and necessary pending compliance with this order.
4. Moving party shall prepare the order after hearing.

15. 9:01 AM CASE NUMBER: C24-02351

CASE NAME: SANDRA HERNANDEZ VS. NFP CORPORATE SERVICES (CA), INC.

*HEARING ON MOTION FOR DISCOVERY QUASH PLAINTIFF'S SUBPOENA TO BANK OF THE WEST
FILED BY: ZOUZOUNIS, THEODORE

TENTATIVE RULING:

Defendant Theodore Zouzounis (“Defendant Zouzounis”) filed a motion to quash on December 31, 2025 (the “Motion to Quash”). By the Motion to Quash, Defendant Zouzounis seeks to quash Plaintiff Sandra Hernandez’ (“Plaintiff”) subpoena to third party Bank of the West, or, alternatively, a protective order. The Motion to Quash was set for hearing on July 27, 2026.

Background

Plaintiff issued a subpoena for testimony and documents to Bank of the West on November 24, 2025 (“the Subpoena”). See Memorandum of Points and Authorities ISO Motion to Quash filed December 31, 2025 (“MPA”), p. 2. The Subpoena seeks the deposition of Bank of the West’s person most knowledgeable (“PMK”). See Declaration of Annalisa Zulueta ISO Motion to Quash filed December 31, 2025 (“Zulueta Decl.”), p. 2 and **Exhibit A** thereto. Additionally, it requests the following records (the “Bank Records Requests”):